

1 ENGROSSED SENATE
2 BILL NO. 1238

By: Coleman of the Senate

3 and

4 Pfeiffer of the House

5
6
7 An Act relating to crimes and punishments; amending
8 Section 10, Chapter 366, O.S.L. 2024, as amended by
9 Section 4, Chapter 187, O.S.L. 2025 (21 O.S. Supp.
10 2025, Section 20J), which relates to Class B5
11 offenses; modifying provisions of certain offense;
12 updating statutory references; amending 21 O.S. 2021,
13 Section 644, as last amended by Section 3, Chapter
14 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644),
15 which relates to assault and battery; modifying
16 provisions of certain offense; conforming statutory
17 references; updating statutory language; and
18 providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY Section 10, Chapter 366, O.S.L.
21 2024, as amended by Section 4, Chapter 187, O.S.L. 2025 (21 O.S.
22 Supp. 2025, Section 20J), is amended to read as follows:

23 Section 20J. A. ~~Upon the effective date of this act~~ On or
24 after January 1, 2026, Class B5 shall include the following criminal
25 offenses:

26 1. Second or subsequent conviction for assault and battery
27 against a current or former intimate partner or a family or

1 household member, as provided for in subsection C of Section 644 of
2 ~~Title 21 of the Oklahoma Statutes~~ this title;

3 2. ~~Second or subsequent conviction for domestic~~ Domestic abuse
4 committed in the presence of a child, as provided for in subsection
5 G of Section 644 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 3. Assault and battery by strangulation or attempted
7 strangulation against an intimate partner or a family or household
8 member, as provided for in subsection J of Section 644 of ~~Title 21~~
9 ~~of the Oklahoma Statutes~~ this title;

10 4. Aggravated assault and battery, as provided for in Section
11 646 of ~~Title 21 of the Oklahoma Statutes~~ this title;

12 5. Battery or assault and battery upon a police officer,
13 sheriff, deputy sheriff, highway patrolman, corrections personnel,
14 or other state peace officer, as provided for in subsection B of
15 Section 649 of ~~Title 21 of the Oklahoma Statutes~~ this title;

16 6. Striking or mistreating a police dog or police horse during
17 the commission of a misdemeanor or felony, as provided for in
18 subsection D of Section 649.1 of ~~Title 21 of the Oklahoma Statutes~~
19 this title;

20 7. Disfiguring, disabling, or killing a police dog or police
21 horse during the commission of a misdemeanor or felony, as provided
22 for in subsection C of Section 649.2 of ~~Title 21 of the Oklahoma~~
23 ~~Statutes~~ this title;

1 8. Battery or assault and battery resulting in bodily injury to
2 any employee of the Office of Juvenile Affairs or residential
3 facility, as provided for in subsection E of Section 650.2 of ~~Title~~
4 ~~21 of the Oklahoma Statutes~~ this title;

5 9. Assault with intent to kill, as provided for in Section 653
6 of ~~Title 21 of the Oklahoma Statutes~~ this title;

7 10. Assault with intent to commit any felony, as provided for
8 in Section 681 of ~~Title 21 of the Oklahoma Statutes~~ this title;

9 11. Manslaughter in the second degree, as provided for in
10 Section 716 of ~~Title 21 of the Oklahoma Statutes~~ this title;

11 12. Owning a mischievous animal that kills a human being, as
12 provided for in Section 717 of ~~Title 21 of the Oklahoma Statutes~~
13 this title;

14 13. Causing, aiding, abetting, or encouraging a minor to commit
15 or participate in committing a felony offense, as provided for in
16 subsection C of Section 856 of ~~Title 21 of the Oklahoma Statutes~~
17 this title;

18 14. Causing, aiding, abetting, encouraging, soliciting, or
19 recruiting a minor to participate, join, or associate with any
20 criminal street gang, as provided for in subsection D of Section 856
21 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 15. Committing a gang-related offense as a condition of
23 membership in a criminal street gang, as provided for in Section
24 856.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 16. Stalking, as provided for in subsection B of Section 1173
2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

3 17. Second or subsequent conviction of stalking or committing
4 the act of stalking within ten (10) years of the completion of
5 sentence for a prior conviction of stalking, as provided for in
6 subsection C of Section 1173 of ~~Title 21 of the Oklahoma Statutes~~
7 this title;

8 18. Intentionally or recklessly spreading an infectious
9 disease, as provided for in Section 1192.1 of ~~Title 21 of the~~
10 ~~Oklahoma Statutes~~ this title;

11 19. Entering the premises of another while masked or disguised
12 with the intent to inflict bodily injury or injury to property, as
13 provided for in Section 1302 of ~~Title 21 of the Oklahoma Statutes~~
14 this title;

15 20. Assault with a dangerous weapon while masked or in
16 disguise, as provided for in Section 1303 of ~~Title 21 of the~~
17 ~~Oklahoma Statutes~~ this title;

18 21. Unlawful assembly for the purpose of engaging in a riot, as
19 provided for in Section 1320.3 of ~~Title 21 of the Oklahoma Statutes~~
20 this title;

21 22. Acts of cruelty to animals, as provided for in Section 1685
22 of ~~Title 21 of the Oklahoma Statutes~~ this title;

23 23. Instigating or encouraging any cockfight, as provided for
24 in Section 1692.2 of ~~Title 21 of the Oklahoma Statutes~~ this title;

1 24. Keeping a pit or other place or knowingly providing
2 equipment or facilities for cockfighting, as provided for in Section
3 1692.3 of ~~Title 21 of the Oklahoma Statutes~~ this title;

4 25. Servicing or facilitating a cockfight, as provided for in
5 Section 1692.4 of ~~Title 21 of the Oklahoma Statutes~~ this title;

6 26. Owning, possessing, keeping, or training any bird for
7 cockfighting, as provided for in Section 1692.5 of ~~Title 21 of the~~
8 ~~Oklahoma Statutes~~ this title;

9 27. Instigating or encouraging any fight between dogs, as
10 provided for in Section 1694 of ~~Title 21 of the Oklahoma Statutes~~
11 this title;

12 28. Keeping a house, pit, or other place, or providing any
13 equipment or facilities to be used for any fight between dogs, as
14 provided for in Section 1695 of ~~Title 21 of the Oklahoma Statutes~~
15 this title;

16 29. Acting or performing any service in the furtherance of or
17 facilitating any dogfight, as provided for in Section 1696 of ~~Title~~
18 ~~21 of the Oklahoma Statutes~~ this title;

19 30. Owning, possessing, keeping, or training any dog with
20 intent to have such dog fight another dog, as provided for in
21 Section 1697 of ~~Title 21 of the Oklahoma Statutes~~ this title;

22 31. Failing to stop for an accident resulting in a nonfatal
23 injury to another person, as provided for in Section 10-102 of Title
24 47 of the Oklahoma Statutes;

1 32. Personal injury accident while driving or operating a motor
2 vehicle under the influence of alcohol or other intoxicating
3 substance while having a previous conviction for driving or
4 operating a motor vehicle while under the influence of alcohol or
5 other intoxicating substance, as provided for in paragraph 2 of
6 subsection A of Section 11-904 of Title 47 of the Oklahoma Statutes;

7 33. Failure to register as a sex offender, as provided for in
8 Section 583 of Title 57 of the Oklahoma Statutes;

9 34. Furnishing false or misleading information in the
10 registration required by the Sex Offenders Registration Act, as
11 provided for in Section 586 of Title 57 of the Oklahoma Statutes;

12 35. Failure to comply with the Sex Offenders Registration Act,
13 as provided for in subsection A of Section 587 of Title 57 of the
14 Oklahoma Statutes;

15 36. Failure to comply with established guidelines of ~~global-~~
16 ~~positioning-system~~ Global Positioning System (GPS) monitoring
17 pursuant to the provisions of the Sex Offenders Registration Act, as
18 provided for in subsection B of Section 587 of Title 57 of the
19 Oklahoma Statutes;

20 37. Temporarily or permanently residing within a two-thousand-
21 foot radius of a public or private school site or other listed
22 places by a person required to register pursuant to the Sex
23 Offenders Registration Act, as provided for in subsection A of
24 Section 590 of Title 57 of the Oklahoma Statutes;

1 38. Residing with a minor child after being convicted of an
2 offense that involved a minor child by a person required to register
3 pursuant to the Sex Offenders Registration Act, as provided for in
4 subsection B of Section 590 of Title 57 of the Oklahoma Statutes;

5 39. Two or more sex offenders residing together in a dwelling
6 during the term of registration as a sex offender, as provided for
7 in subsection A of Section 590.1 of Title 57 of the Oklahoma
8 Statutes; and

9 40. Establishing, leasing, operating, or owning any structure
10 where persons required to register pursuant to the Sex Offenders
11 Registration Act are allowed to reside, as provided for in
12 subsection E of Section 590.1 of Title 57 of the Oklahoma Statutes.

13 B. Any person convicted of a Class B5 criminal offense set
14 forth in this section shall be punished in accordance with the
15 corresponding penalties provided for in the Oklahoma Statutes.

16 SECTION 2. AMENDATORY 21 O.S. 2021, Section 644, as last
17 amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
18 Section 644), is amended to read as follows:

19 Section 644. A. Assault shall be punishable by imprisonment in
20 a county jail ~~not exceeding~~ for not more than ninety (90) days, or
21 by a fine not more than Five Hundred Dollars (\$500.00), or by both
22 such ~~fine imprisonment~~ and imprisonment fine.

23 B. Assault and battery shall be punishable by imprisonment in a
24 county jail ~~not exceeding~~ for not more than six (6) months, or by a

1 fine not more than One Thousand Dollars (\$1,000.00), or by both such
2 ~~fine imprisonment~~ and ~~imprisonment fine~~.

3 C. Any person who commits any assault and battery against a
4 current or former intimate partner or a family or household member
5 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes
6 shall, upon conviction, be guilty of domestic abuse. ~~Upon~~
7 ~~conviction, the defendant shall be punished~~ punishable by
8 imprisonment in the county jail for not more than one (1) year, or
9 by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by
10 both such ~~fine imprisonment~~ and ~~imprisonment fine~~. Upon conviction
11 for a second or subsequent offense, the person shall be guilty of a
12 Class B5 felony offense ~~and shall be punished~~ punishable by
13 imprisonment in the custody of the Department of Corrections for not
14 more than four (4) years, or by a fine not exceeding Five Thousand
15 Dollars (\$5,000.00), or by both such ~~fine imprisonment~~ and
16 ~~imprisonment fine~~. The provisions of Section 51.1 of this title
17 shall apply to any second or subsequent offense.

18 D. 1. Any person who, with intent to do bodily harm and
19 without justifiable or excusable cause, commits any assault,
20 battery, or assault and battery upon an intimate partner or a family
21 or household member as defined by Section 60.1 of Title 22 of the
22 Oklahoma Statutes with any sharp or dangerous weapon, upon
23 conviction, is guilty of domestic assault or domestic assault and
24 battery with a dangerous weapon which shall be a Class B3 felony

1 offense punishable by imprisonment in the custody of the Department
2 of Corrections ~~not exceeding~~ for not more than ten (10) years, or by
3 imprisonment in a county jail ~~not exceeding~~ for not more than one
4 (1) year. The provisions of Section 51.1 of this title shall apply
5 to any second or subsequent conviction for a violation of this
6 paragraph.

7 2. Any person who, without such cause, shoots an intimate
8 partner or a family or household member as defined by Section 60.1
9 of Title 22 of the Oklahoma Statutes by means of any deadly weapon
10 that is likely to produce death shall, upon conviction, be guilty of
11 domestic assault and battery with a deadly weapon which shall be a
12 Class A3 felony offense punishable by imprisonment in the custody of
13 the Department of Corrections not exceeding life. The provisions of
14 Section 51.1 of this title shall apply to any second or subsequent
15 conviction for a violation of this paragraph.

16 E. 1. Any person convicted of domestic abuse committed against
17 a pregnant woman with knowledge of the pregnancy shall be guilty of
18 a Class B5 felony offense punishable by imprisonment in the custody
19 of the Department of Corrections for not more than five (5) years.

20 2. Any person convicted of a second or subsequent offense of
21 domestic abuse against a pregnant woman with knowledge of the
22 pregnancy shall be guilty of a Class A3 felony offense punishable by
23 imprisonment in the custody of the Department of Corrections for not
24 less than ten (10) years.

1 3. Any person convicted of domestic abuse committed against a
2 pregnant woman with knowledge of the pregnancy and a miscarriage
3 occurs or injury to the unborn child occurs shall be guilty of a
4 Class A1 felony offense punishable by imprisonment in the custody of
5 the Department of Corrections for not less than twenty (20) years.

6 F. Any person convicted of domestic abuse as ~~defined~~ provided
7 for in subsection C of this section that results in great bodily
8 injury to the victim shall be guilty of a Class B3 felony offense
9 ~~and punished~~ punishable by imprisonment in the custody of the
10 Department of Corrections for not more than ten (10) years, or by
11 imprisonment in the county jail for not more than one (1) year. The
12 provisions of Section 51.1 of this title shall apply to any second
13 or subsequent conviction of a violation of this subsection.

14 G. Any person convicted of domestic abuse as ~~defined~~ provided
15 for in subsection C of this section that was committed in the
16 presence of a child shall ~~be punished by imprisonment in the county~~
17 ~~jail for not less than six (6) months nor more than one (1) year, or~~
18 ~~by a fine not exceeding Five Thousand Dollars (\$5,000.00), or by~~
19 ~~both such fine and imprisonment. Any person convicted of a second~~
20 ~~or subsequent domestic abuse as defined in subsection C of this~~
21 ~~section that was committed in the presence of a child shall, upon~~
22 conviction, be guilty of a Class B5 felony offense ~~and shall be~~
23 ~~punished~~ punishable by imprisonment in the custody of the Department
24 of Corrections for not less than one (1) year nor more than five (5)

1 years, or by a fine not exceeding Seven Thousand Dollars
2 (\$7,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~
3 fine. The provisions of Section 51.1 of this title shall apply to
4 any second or subsequent offense. For every conviction of a
5 domestic abuse crime in violation of any provision of this section
6 committed against an intimate partner or a family or household
7 member as defined by Section 60.1 of Title 22 of the Oklahoma
8 Statutes, the court shall:

9 1. Specifically order as a condition of a suspended or deferred
10 sentence that a defendant participate in counseling or undergo
11 treatment to bring about the cessation of domestic abuse as
12 specified in paragraph 2 of this subsection;

13 2. a. The court shall require the defendant to complete an
14 assessment and follow the recommendations of a
15 ~~batterers'~~ batterers intervention program certified by
16 the Attorney General. If the defendant is ordered to
17 participate in a ~~batterers'~~ batterers intervention
18 program, the order shall require the defendant to
19 attend the program for a minimum of fifty-two (52)
20 weeks, complete the program, and be evaluated before
21 and after attendance of the program by program staff.
22 Three unexcused absences in succession or seven
23 unexcused absences in a period of fifty-two (52) weeks
24 from any court-ordered ~~batterers'~~ batterers

1 intervention program shall be prima facie evidence of
2 the violation of the conditions of probation for the
3 district attorney to seek acceleration or revocation
4 of any probation entered by the court.

- 5 b. A program for anger management, couples counseling, or
6 family and marital counseling shall not solely qualify
7 for the counseling or treatment requirement for
8 domestic abuse pursuant to this subsection. The
9 counseling may be ordered in addition to counseling
10 specifically for the treatment of domestic abuse or
11 per evaluation as set forth below. If, after
12 sufficient evaluation and attendance at required
13 counseling sessions, the domestic violence treatment
14 program or licensed professional determines that the
15 defendant does not evaluate as a perpetrator of
16 domestic violence or does evaluate as a perpetrator of
17 domestic violence and should complete other programs
18 of treatment simultaneously or prior to domestic
19 violence treatment, including but not limited to
20 programs related to the mental health, apparent
21 substance or alcohol abuse or inability or refusal to
22 manage anger, the defendant shall be ordered to
23 complete the counseling as per the recommendations of
24

1 the domestic violence treatment program or licensed
2 professional;

- 3 3. a. The court shall set a review hearing no more than one
4 hundred twenty (120) days after the defendant is
5 ordered to participate in a domestic abuse counseling
6 program or undergo treatment for domestic abuse to
7 assure the attendance and compliance of the defendant
8 with the provisions of this subsection and the
9 domestic abuse counseling or treatment requirements.
10 The court may suspend sentencing of the defendant
11 until the defendant has presented proof to the court
12 of enrollment in a program of treatment for domestic
13 abuse by an individual licensed practitioner or a
14 domestic abuse treatment program certified by the
15 Attorney General and attendance at weekly sessions of
16 such program. Such proof shall be presented to the
17 court by the defendant no later than one hundred
18 twenty (120) days after the defendant is ordered to
19 such counseling or treatment. At such time, the court
20 may complete sentencing, beginning the period of the
21 sentence from the date that proof of enrollment is
22 presented to the court, and schedule reviews as
23 required by ~~subparagraphs a~~ this subparagraph and
24 subparagraph b of this paragraph and paragraphs 4 and

1 5 of this subsection. Three unexcused absences in
2 succession or seven unexcused absences in a period of
3 fifty-two (52) weeks from any court-ordered domestic
4 abuse counseling or treatment program shall be prima
5 facie evidence of the violation of the conditions of
6 probation for the district attorney to seek
7 acceleration or revocation of any probation entered by
8 the court.

9 b. The court shall set a second review hearing after the
10 completion of the counseling or treatment to assure
11 the attendance and compliance of the defendant with
12 the provisions of this subsection and the domestic
13 abuse counseling or treatment requirements. The court
14 shall retain continuing jurisdiction over the
15 defendant during the course of ordered counseling
16 through the final review hearing;

17 4. The court may set subsequent or other review hearings as the
18 court determines necessary to assure the defendant attends and fully
19 complies with the provisions of this subsection and the domestic
20 abuse counseling or treatment requirements;

21 5. At any review hearing, if the defendant is not
22 satisfactorily attending individual counseling or a domestic abuse
23 counseling or treatment program or is not in compliance with any
24 domestic abuse counseling or treatment requirements, the court may

1 order the defendant to further ~~or~~ continue counseling, treatment, or
2 other necessary services. The court may revoke all or any part of a
3 suspended sentence, deferred sentence, or probation pursuant to
4 Section 991b of Title 22 of the Oklahoma Statutes and subject the
5 defendant to any or all remaining portions of the original sentence;

6 6. At the first review hearing, the court shall require the
7 defendant to appear in court. Thereafter, for any subsequent review
8 hearings, the court may accept a report on the progress of the
9 defendant from individual counseling, domestic abuse counseling, or
10 the treatment program. There shall be no requirement for the victim
11 to attend review hearings; and

12 7. If funding is available, a referee may be appointed and
13 assigned by the presiding judge of the district court to hear
14 designated cases set for review under this subsection. Reasonable
15 compensation for the referees shall be fixed by the presiding judge.
16 The referee shall meet the requirements and perform all duties in
17 the same manner and procedure as set forth in Sections 1-8-103 and
18 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees
19 appointed in juvenile proceedings.

20 The defendant may be required to pay all or part of the cost of
21 the counseling or treatment, in the discretion of the court.

22 H. As used in subsection G of this section, "in the presence of
23 a child" means in the physical presence of a child; or having
24 knowledge that a child is present and may see or hear an act of

1 domestic violence. For the purposes of ~~subsections C and~~ subsection
2 G of this section, "child" may be any child whether or not related
3 to the victim or the defendant.

4 I. For the purposes of ~~subsections~~ subsection C ~~and G~~ of this
5 section, any conviction for assault and battery against an intimate
6 partner or a family or household member as defined by Section 60.1
7 of Title 22 of the Oklahoma Statutes shall constitute a sufficient
8 basis for a felony charge:

9 1. If that conviction is rendered in any state, county, or
10 parish court of record of this or any other state; or

11 2. If that conviction is rendered in any municipal court of
12 record of this or any other state for which any jail time was
13 served; provided, no conviction in a municipal court of record
14 entered prior to November 1, 1997, shall constitute a prior
15 conviction for purposes of a felony charge.

16 J. Any person who commits any assault and battery by
17 strangulation or attempted strangulation against an intimate partner
18 or a family or household member as defined by Section 60.1 of Title
19 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a
20 Class B5 felony offense of domestic abuse by strangulation ~~and shall~~
21 ~~be punished~~ punishable by imprisonment in the custody of the
22 Department of Corrections for a period not less than one (1) year
23 nor more than ten (10) years, or by a fine not more than Twenty
24 Thousand Dollars (\$20,000.00), or by both such ~~fine~~ imprisonment and

1 ~~imprisonment~~ fine. The provisions of Section 51.1 of this title
2 shall apply to any second or subsequent conviction of a violation of
3 this subsection. As used in this subsection, "strangulation" means
4 any form of asphyxia~~+~~+, including, but not limited to, asphyxia
5 characterized by closure of the blood vessels or air passages of the
6 neck as a result of external pressure on the neck or the closure of
7 the nostrils or mouth as a result of external pressure on the head.

8 K. Any district court of this state and any judge thereof shall
9 be immune from any liability or prosecution for issuing an order
10 that requires a defendant to:

11 1. Attend a treatment program for domestic abusers certified by
12 the Attorney General;

13 2. Attend counseling or treatment services ordered as part of
14 any suspended or deferred sentence or probation; and

15 3. Attend, complete, and be evaluated before and after
16 attendance by a treatment program for domestic abusers, certified by
17 the Attorney General.

18 L. There shall be no charge of fees or costs to any victim of
19 domestic violence, stalking, or sexual assault in connection with
20 the prosecution of a domestic violence, stalking, or sexual assault
21 offense in this state.

22 M. In the course of prosecuting any charge of domestic abuse,
23 stalking, harassment, rape, or violation of a protective order, the
24 prosecutor shall provide the court, prior to sentencing or any plea

1 agreement, a local history and any other available history of past
2 convictions of the defendant within the last ten (10) years relating
3 to domestic abuse, stalking, harassment, rape, violation of a
4 protective order, or any other violent misdemeanor or felony
5 convictions.

6 N. Any plea of guilty or finding of guilt for a violation of
7 subsection C, F, G, I, or J of this section shall constitute a
8 conviction of the offense for the purpose of this ~~act~~ section or any
9 other criminal statute under which the existence of a prior
10 conviction is relevant for a period of ten (10) years following the
11 completion of any ~~court-imposed~~ court-imposed probationary term;
12 provided, the person has not, in the meantime, been convicted of a
13 misdemeanor involving moral turpitude or a felony.

14 O. For purposes of subsection F of this section, "great bodily
15 injury" means bone fracture, protracted and obvious disfigurement,
16 protracted loss or impairment of the function of a body part, organ, or
17 or mental faculty, or substantial risk of death.

18 P. Any pleas of guilty or nolo contendere or finding of guilt
19 to a violation of any provision of this section shall constitute a
20 conviction of the offense for the purpose of any subsection of this
21 section under which the existence of a prior conviction is relevant
22 for a period of ten (10) years following the completion of any
23 sentence or ~~court-imposed~~ court-imposed probationary term.

24 SECTION 3. This act shall become effective November 1, 2026.

1 Passed the Senate the 9th day of March, 2026.

2
3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

7
8 _____
9 Presiding Officer of the House
10 of Representatives